

Action Short of a Strike Must Recognize That 9-5 is Not Always Helpful

Cite as: Martin Paul Eve, "Action Short of a Strike Must Recognize That 9-5 is Not Always Helpful", *eve.gd: Martin Paul Eve*, March 20, 2018, <https://doi.org/10.59348/e156j-3kr40>.

A lot of the social media posts that I've seen recently about the UCU's call for "Action Short of a Strike" (ASOS) are fixated on the idea that everyone's contract stipulates that they will work from 9 in the morning until 5 (or 6) in the afternoon and that one should not work outside these hours. One should not send email, either, apparently outside these hours.

For instance, [UCU Kent Branch](#) said: "ASOS needs to be effective. All UCU members must observe ASOS with the greatest solidarity possible. Work 35hrs no more, no emails after 6, never on W.ends".

The problem with this is that, for many academics, this is not how life works. Sure, the rhetoric of "flexibility" is frequently mis-used by managers to justify the employment of precarious staff who apparently choose to work within a lifestyle where they never know whether they'll get paid (hint: they don't). But there are real aspects of flexibility that are valued by specific groups.

Here are some of those who are damaged by the insistence on 9-5:

1. The chronically ill and disabled, including me. I spend [quite a lot of time in hospitals](#). These appointments are, by necessity, during the usual 9-5 hours. My employer allows me to attend these appointments, knowing that I will be making up the hours at other times. My working life would be very difficult without this.
2. Those with childcare (or other caring) responsibilities. Flexibility to collect children from school, to tend to them in emergency situations, and other times seems, to me, to require flexibility from an employer, particularly for single parents, I would imagine.

3. Those who work unconventional hours in the first place. Birkbeck, University of London, where I work, is the night university/college of the University of London. Our teaching doesn't *start* until 6pm.

Those who insist on not emailing outside of “working hours” don't seem to realize that, shock, not everyone has the same “working hours”. Your working hours are not necessarily mine.

Further, there's a weird relationship here to the asynchronicity of email. We live in a world of global communications, where much of my email goes to the States. By the logic of “don't email at the weekends or after 6pm”, should I not also adjust my sending hours so that colleagues overseas won't receive emails at odd times? (No, I shouldn't.)

I think people should send emails when they want to fit their own working patterns. But, also, everyone should feel free to respond when they want within their own patterns. What we need to get away from is not “sending emails at times that work for individuals” but, rather, the ridiculous pressure that some people clearly feel to reply to emails on a 24-hour-a-day basis. It's the latter that is damaging. I *do not* expect replies to emails sent at 9pm within minutes. In fact, I don't expect any reply to an email except within a 3-working-day window (unless it's marked as genuinely urgent).

So, I think some care around whom we exclude when we frame ASOS in narrow ways is here merited. Certainly, working to contract can be an effective industrial relations strategy. But it can also, when badly generalized, lead to exclusion among specific groups.